

23AVCV00204 23AVCV00204

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23AVCV00204 Hearing Date: August 31, 2026 Dept: A14

23AVCV00204 SALAS vs AMERICAN HONDA MOTOR CO.,
et al.

The

following are the Court's rulings on the parties' Motions in Limine ("MILs").

Because the following rulings on the motions in limine are based upon evidence known at the present time, these rulings are only tentative and may be subject to change as the evidence unfolds. (See Scott v. C.R. Bard, Inc. (2014) 231 Cal.App.4th 763.)

PLAINTIFF'S MOTION IN LIMINE NO. 1 TO PRECLUDE
EVIDENCE OR TESTIMONY REGARDING ATTORNEY FEES, ATTORNEY FEE LITIGATION, AND
OTHER ATTACK OR CRITICISM OF PLAINTIFF'S COUNSEL.

GRANTED, as unopposed.

PLAINTIFF'S MOTION IN LIMINE NO. 2 TO PRECLUDE
TESTIMONY OR ARGUMENT THAT PLAINTIFF DID NOT MAKE SUFFICIENT EFFORTS TO ASK
DEFENDANT TO REPURCHASE OR REPLACE VEHICLE.

GRANTED, as unopposed.

PLAINTIFF'S MOTION IN LIMINE NO. 3 TO PRECLUDE
ARGUMENT THAT AN AUTHORIZED DEALERSHIP IS NOT DEFENDANT'S AGENT DURING WARRANTY
REPAIRS AND SALE.

DENIED, in part, and GRANTED in
part. To the extent Plaintiff is seeking an order that the dealership is the

agent of Defendant for all purposes, the motion is denied. The Court cannot determine in the abstract whether, for instances, statements by dealership personnel should be attributed to Defendant under an actual or ostensible agency theory. As a predicate to admission of such statements as a party admission, Plaintiffs would first have to establish the dealership personnel are agents of Defendant.

The Motion is GRANTED to the extent it seeks to enforce the holding of Ibrahim v. Ford Motor Co. (1989) 214 Cal.App.3d 878. Under Ibrahim, a manufacturer/distributor cannot argue that it must be given its own opportunity to repair a vehicle, irrespective of its dealerships' repair attempts, before it is required to repurchase or replace a consumer's vehicle. Ibrahim does not stand for the proposition, as Plaintiff may argue, that a dealership is the agent of the manufacturer/distributor for all purposes set forth in the Song-Beverly Act.

PLAINTIFF'S MOTION IN LIMINE NO. 4 TO PROHIBIT EVIDENCE OR ARGUMENT THAT PLAINTIFF MISUSED, ABUSED, OR FAILED TO MAINTAIN THE VEHICLE.

DENIED, without prejudice. No specific evidence to be excluded is identified. (Kelly v. New West Federal Savings (1996) 49 Cal.App.4th 659, 670.) Furthermore, the Court cannot say as a matter of law that the topics identified in the Motion are per se irrelevant to defenses in this matter.

PLAINTIFF'S MOTION IN LIMINE NO. 5 TO EXCLUDE REFERENCE TO ANY SETTLEMENT OFFERS OR NEGOTIATIONS.

GRANTED, as unopposed.

PLAINTIFF'S MOTION IN LIMINE NO. 6 TO EXCLUDE EVIDENCE OR REFERENCE REGARDING DEFENDANT'S THIRD-PARTY DISPUTE RESOLUTION PROCESS

Plaintiff seeks penalties under Civil Code Section 1794(e) for willful failure to comply with provisions of the Song-Beverly Act. Civil penalties pursuant to Civil Code section 1794 subdivision (e) are not available if the manufacturer proves that they maintain a qualified dispute resolution process in California: "If the manufacturer maintains a qualified

third-party dispute resolution process which substantially complies with Section 1793.22, the manufacturer shall not be liable for any civil penalty pursuant to this subsection." (Civ. Code §1794, subd. (e)(2).) Civil Code §1793.22, subdivision (d) states that "[a] qualified third-party dispute resolution process shall be one that does all of the following" and lists nine requirements. Section 1793.22, subdivision (d)(9) states that a qualified third-party dispute resolution process is one that "[o]btains and maintains certification by the Department of Consumer Affairs pursuant to Chapter 9 (commencing with Section 472) of Division 1 of the Business and Professions Code.

Plaintiff's position is that Defendant does not maintain a third-party dispute resolution process certified by the California Department of Consumer Affairs. "It is undisputed that AHMC does not and never has had a certified program in California." (Motion, at 2, and Wilson Declaration, Ex. 2.)

Defendant disputes Plaintiff's charge that it does not maintain a third-party dispute resolution process certified by the California Department of Consumer Affairs. (Opposition, at 2: "On May 8, 2025, AHM received its DCA certification for its arbitration program. (Pacheco Decl., ¶ 4.) From the date Plaintiffs acquired the Subject Vehicle to May 8, 2025, AHM made no material changes to its arbitration program. (Pacheco Decl., ¶ 8.).")

The Court will hear argument on the sufficiency of Defendant's evidence that its program has in fact received DCA certification. The Court notes that Section 1794(e) uses the present tense "If the manufacturer maintains a qualified third-party dispute resolution process. . . ." There appears to be no requirement that a certified program was in place at the time of the alleged breach.

PLAINTIFF'S

MOTION IN LIMINE NO. 7 TO PRECLUDE ARGUMENT THAT VEHICLE INSURANCE AND REGISTRATION INCURRED AFTER THE VEHICLE QUALIFIED FOR A REPURCHASE ARE NOT RECOVERABLE UNDER THE SONG-BEVERLY ACT, OR ARE OTHERWISE THE STANDARD COSTS OF OWNERSHIP

GRANTED, in part and DENIED in part.

The Court agrees with Defendant that the overbroad nature of the Motion could conceivably preclude evidence that is probative. However, as Plaintiff

will be arguing at trial that at some point the vehicle did qualify for repurchase, then Plaintiff should be entitled to certain expenses incurred after that point.

Registration

renewal and nonoperation fees are recoverable as incidental damages “if they were incurred as a result of the manufacturer’s failure to promptly provide a replacement vehicle or restitution once its obligation to do so under section 1793.2, subdivision (d)(2) arises.” (*Kirzhner v. Mercedes-Benz USA, LLC* (2020) 9 Cal.5th 966, 977).

Some

insurance premium payments may be recoverable, but not all of them. The full amount of the insurance premiums are not “incidental damages.” Consistent with Kirzhner’s distinction between postviolation costs incurred for the manufacturer’s benefit and postviolation costs incurred for the consumer’s benefit, consumers may recover as “incidental damages” only those insurance premiums incurred to “safeguard the vehicle from damage due to a collision, theft, vandalism, fire, and similar risks” because those would “reduce the value of the manufacturer’s interest in the vehicle.” (*Crayton v. FCA US LLC* (2021) 63 Cal.App.5th 194, 209, 276 Cal.Rptr.3d 810 (Crayton).) Thus, only “payments of property damage premiums” are recoverable as “incidental damages” (*ibid.*). Payments for liability premiums are not recoverable.